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U.S. Department of State Diplomacy in Action

Chad

Bureau of Democracy, Human Rights, and Labor

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Chad is a centralized republic with a population of approximately 9,826,000. Political power remains concentrated in the hands of a northern oligarchy composed of the president's Zaghawa ethnic group and its allies. The executive branch effectively dominated the legislature and judiciary, thereby eliminating potential challenges to a culture of impunity for the ruling minority. President Idriss Deby, leader of the Patriotic Salvation Movement (MPS), has ruled since taking power in a 1990 rebellion. He was reelected president in 2001; however, fraud including widespread vote rigging and other local irregularities marred that election and the 2002 legislative elections.

During the year the security situation in the East grew increasingly tenuous due to the conflict in the Darfur region of Sudan on the country's border, the growing number of rebels that were operating in the East, and incursions by *janjaweed* (Sudanese militias) and bandits. The government continued its attempts to negotiate with the rebel group Movement for Democracy and Justice in Chad (MDJT) to end the rebellion in the northwest Tibesti region. Growing insecurity along the southern border shared with the Central African Republic (CAR) resulted in additional refugee flows into the country.

Civilian authorities did not maintain effective control of the security forces, elements of which frequently acted independently of government control. Security forces committed or sanctioned serious human rights abuses. The government's human rights record remained poor. The following human rights problems were reported:

- limitation of citizens' right to change their government
- extrajudicial killings, torture, beatings, and rapes by security forces
- near total impunity for human rights abuses committed by members of the security forces
- politically motivated disappearances
- arbitrary arrest and detention by security forces
- harsh and life-threatening prison conditions and lengthy pretrial and post-sentence detention
- executive interference in the judiciary and lack of judicial effectiveness
- official infringement of privacy rights including illegal searches, confiscation, and wiretaps
- limits on freedom of speech and the press, including harassment and detention of journalists, and on freedom of assembly
- widespread official corruption
- violence and societal discrimination against women, including the widespread practice of female genital mutilation (FGM), and child abuse

- slavery
- trafficking in persons
- forced labor, including forced child labor, and other abusive child labor

The government took some steps toward addressing the human rights situation, including creating a new ministerial post for human rights, releasing 500 prisoners, most of whom had been awaiting trial, and removing from the security services approximately 60 members of the former Directorate of Documentation and Security identified in a Human Rights Watch (HRW) report as human rights abusers.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

Government agents committed politically motivated killings, and officially sanctioned extrajudicial killings of suspected criminals by security forces continued. Local human rights organizations estimated that arbitrary and unlawful killings by security forces were widespread. Extrajudicial killings rarely were directed centrally, and they most often occurred outside the capital, where there was less control over security forces. The government rarely prosecuted or punished members of the security forces who committed killings. For example, on October 7 in Krim Krim, gendarmes killed two persons after they had refused to pay a bribe. No action was taken against the perpetrators.

During the year security forces committed numerous killings during apprehensions or of persons in custody. In April prison guards killed a prisoner trying to escape from the prison in Bongor. During the year the use of excessive force by security forces resulted in numerous deaths.

On January 20, members of the nomadic guard (GNNT) fired on traders coming from Nigeria, killing one and injuring two. The governor of Lac-Kanem arrested the perpetrators, but there were no further developments in the case at year's end.

In March in Lac-Kanem, unidentified armed men in military uniforms fired on herders, killing two and injuring two. Government authorities were notified but took no action.

In April gendarmes killed Saleh Baharadine, a driver at the National Hospital in Abeche. There was no investigation into the killing.

Security forces killed refugees after they came under attack in refugee camps in May (see section 2.d.).

There were no developments in the 2004 incidents of the GNNT killing of a customs agent, of unidentified men in military uniforms attacking traders in the eastern part of the country, or the killing by gendarmes of two persons in Tandjile West.

Landmines laid by government, rebel, and foreign forces in previous years caused numerous deaths and injuries during the past three years. The government's demining program cleared approximately 2,115 square miles of mines between 2000-05. The government and its international partners destroyed more than 19 thousand mines, 141 thousand items of unexploded ordnance, and 106 bombs. During the year 12 persons suffered severe accidental injuries from landmines.

Armed bandits continued to operate on many roads, assaulting, robbing, and killing travelers; some perpetrators were identified as active duty soldiers or deserters.

In January unidentified assailants attacked the governor of Ouaddai as he was traveling near Adre. The governor's security detachment killed two of the gunmen. Families of the dead gunmen demanded compensation and threatened the governor's life.

On April 18, armed bandits attacked the sub-prefect of Adre. There was no investigation or arrests in the case.

In May armed bandits killed two employees of a nongovernmental organization (NGO), including the son of the prefect of Mobroum. The bandits also stole \$400 (FCFA 200 thousand). There were no arrests in the case.

Interethnic fighting resulted in numerous deaths (see section 5).

b. Disappearance

There were reports of politically motivated disappearances during the year. These occurred particularly between September and December, in connection with alleged mutiny attempts, military desertions, and political defections, and also attacks carried out on two military installations in November.

Local human rights groups reported that in May, 46 air force officers, who reportedly opposed holding the public referendum on constitutional revisions, were arrested and sent to the northern part of the country. Human rights groups believed the officers were killed, and the government offered no evidence to counter these allegations.

In June the military arrested Naguili Delphine for unknown reasons; by year's end he had not been found.

In August, 13 to 15 army colonels were arrested. Some may have been moved to N'Djamena for questioning, but their whereabouts remained unknown at year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Although the law prohibits such practices, members of the security forces tortured, beat, abused, and raped citizens. Impunity for those who committed human rights abuses remained widespread.

In January members of the presidential guard shot and injured two Independent National Electoral Commission (CENI) agents. The then minister of defense had the soldiers arrested. At year's end one soldier had escaped from the prison in N'Djamena and the other remained in prison awaiting trial.

In March gendarmes arrested and tortured a herder, Adelrahman Abakar, in Salamat. He had failed to acquire the necessary legal travel documents from gendarmes before moving his cattle through the area and refused to pay a bribe. No action was taken against the gendarmes.

According to the Chadian League of Human Rights (LTDH), in April gendarmes arrested and beat Malloum Ali in Bol, and the chief commandant of the gendarmerie brigade ordered his fingers to be cut off.

Also in April members of the nomadic guard arrested and tortured a government official in Adre. He had refused to provide an official car to transport troops for the governor's motorcade. Authorities took no action against the guard members.

In August police castrated a man after a dispute over a woman. The officers involved paid for the man's treatment. No further action was taken against the police officers implicated.

By year's end no action had been taken against the soldiers who harassed local citizens in Chagoua in 2003.

Unlike the previous year, there were no reports that members of the security forces threatened and beat officials of the local power and water utilities when their services were cut or reduced during shortages. However, power company officials used military and police escorts when investigating and turning off power to illegal power users, some of whom were members of the security forces.

Security forces beat a journalist and an NGO member during the year (see sections 2.a. and 4).

On March 17, members of the military arrested and beat Maxime Allarasse of the private Catholic radio station in Moundou.

No action had been taken against the perpetrators in the shooting and serious wounding in June 2004 of herders in Kanem.

During the year police and gendarmes continued to rape women in custody.

FGM continued to be a problem (see section 5).

Prison and Detention Center Conditions

Prison conditions remained harsh and life threatening. Prisons were seriously overcrowded, had poor sanitation, and provided inadequate food, shelter, and medical facilities. As a result of inadequate record-keeping and management, many individuals remained in prison after completing their sentences or after courts had ordered their release.

Local human rights organizations continued to report on the existence of military prisons and prisons run by the immigration service, to which access was prohibited. It was unknown who was detained in these prisons and for what reasons they were held.

While the law provides that a doctor must visit each prison three times a week, this provision was not respected. Although the law authorizes forced labor in prison, human rights organizations reported that it did not generally occur in practice.

There were reports that prisoners died from negligence. On March 13, two prisoners in Bongor died as the result of poor medical treatment.

Juvenile males were not always separated from adult male prisoners. In some cases juvenile males were held with female prisoners. Pretrial detainees were held with convicted prisoners.

The government permitted the International Committee of the Red Cross (ICRC) to visit most civil prisons on a regular basis, except for secret prisons operated by the National Security Agency (ANS), gendarmerie, and police. The ICRC conducted such visits during the year. The government provided the NGO Chadian Association for the Promotion of Human Rights (ATPDH) with a permanent authorization notice to visit civil prisons at any time, without need to provide advance notice. Other NGOs, including human rights groups, were required to obtain authorization from a court or from the director of prisons; such authorizations depended largely on the personal inclinations of those with authority to grant permission. ICRC confirmed the existence of illegal prisons run by the gendarmerie, the ANS, and the police and requested access to them; however, no access was granted. Persons were also secretly kept in regular jails. Organizations were not allowed access to military prisons.

d. Arbitrary Arrest or Detention

Although the law prohibits it, security forces continued to use arbitrary arrest and detention.

Role of the Police and Security Apparatus

The National Army (ANT), gendarmerie (a military police force), national police, GNNT, and ANS are responsible for internal security. The ANT, gendarmerie, and GNNT report to the Ministry of Defense; the national police reports to the Ministry of Public Security and Immigration, and the ANS reports to the president. In August the Ministry of Defense was placed under the direction of the presidency. Officers from President Deby's ethnic group and closely allied ethnic groups dominated the ANS and republican guard. During the year the ANT and gendarmerie were deployed in the Northwest to fight MDJT rebels, in the East to maintain security along the border with Sudan, and to the South where growing insecurity along the border shared with the CAR led to additional refugee inflows.

The police force was centrally controlled, but exercising oversight, particularly outside of N'Djamena, was difficult. Police officials who committed human rights abuses generally enjoyed impunity. Government officials publicly acknowledged the country's growing internal security problems, which resulted in part from the inability of the national police in N'Djamena and in the regions to counter widespread banditry, particularly outside of N'Djamena, and the proliferation of arms resulting from a succession of civil wars. The government often allowed months to pass before it paid police force members, and corruption was widespread.

Arrest and Detention

Persons were arrested and detained both openly and secretly, and arbitrary arrest and detention were a problem.

While the law requires police to obtain a warrant signed by a judicial official before arresting a person, the government often did not respect this requirement. The law requires both access to bail and access to counsel, but neither was regularly provided. Few detainees had the means to pay for private counsel, and incommunicado detention was a problem.

Detainees were not promptly informed of charges, and judicial determinations were not made promptly; this was a major cause of prison congestion.

The law states that legal counsel should be provided for indigent defendants and that defendants are to be allowed prompt access to family members and counsel; however, in practice this usually did not occur.

In March the chief commandant of the ANS in Dourbali arrested and detained Adam Mahamat, although by law the ANS does not have police arrest powers. No reason for the arrest was given, but human rights groups believed he was arrested because of his connections with suspected rebels. The commandant confiscated \$556 (FCFA 278 thousand) from Adam.

In April the chief police commandant arrested Ahmat Nagrtoloum, an employee of the Ministry of Finance in N'Djamena. Human rights groups were denied access. He was jailed allegedly for corruption but had not been charged by year's end.

Army colonel Saoua was arrested and sent to Bardai in November 2004 for questioning on suspicion of being involved in coup activity; he was allowed free movement there but could not leave Bardai. He had not been charged by year's end.

In November the government arrested at least 30 people in connection with attacks on two military camps. They remained in ANS custody at the end of the year. Family members reported that many of them were arrested because they were relatives of suspected perpetrators. There were several reports that the government continued to make arbitrary arrests connected to the deteriorating security situation.

There were no further developments in the 2004 cases in which gendarmes beat and robbed a man and also arrested herders in Kerfi.

Security forces continued to conduct searches, mostly in N'Djamena but also outside the city, and increased security operations along the eastern border with Sudan. Police at times arrested journalists and NGO officials who criticized the government (see sections 2.a. and 4).

Lengthy pretrial detention remained a problem. Of the 3,416 prisoners, 1,980 were awaiting trial. Persons accused of crimes could be imprisoned for several years before being charged or tried, particularly those who were arrested in the provinces for felonies and transferred to the overcrowded prison in N'Djamena. The human rights minister reported that approximately 965 prisoners in the central prison were still awaiting judgment at year's end. Approximately half of them had been tried and were awaiting sentencing; the other half were awaiting trial.

e. Denial of Fair Public Trial

The judiciary was ineffective, underfunded, overburdened, vulnerable to acts of intimidation and violence, and subject to executive interference. In practice government officials and other influential persons often enjoyed immunity from judicial sanction. Members of the military, in which the president's Zaghawa ethnic group figured prominently, continued to enjoy a particularly high degree of immunity from prosecution.

During the year members of the judiciary received death threats or faced demotion or removal from their positions for not acquiescing to pressure from corrupt officials. On March 4, an appeals court ruled in favor of the local buyer in a long-standing real estate dispute. Despite this finding, the minister of justice ordered the police to evict the buyer from the property. On March 11, the appeals court judge was demoted two grades and reassigned outside the capital.

The appeals court judges who in July ruled in favor of arrested journalists also came under significant government pressure to reverse their decision; however, the judges held firm.

There were no further developments in the case of the October 2004 killing of Daynguirim Etienne, a magistrate in Abeche. By year's end the alleged assailant was in custody.

At the national level, a Supreme Court, constitutional court, and court of appeals exist; however, some of their members were appointed by the government rather than elected by citizens as required by the law, which weakened the independence of the courts. The constitutionally mandated high court of justice could try high-ranking government officials; only the national assembly, which had taken no action on cases by year's end, could submit cases to this court.

The judicial system included courts located in provincial capitals. Two additional appeals courts were established during the year, bringing the total number to three, located in N'Djamena, Moundou, and Abeche.

The law mandates that the Superior Council of Magistrates recommend judicial nominations and sanction judges who commit improprieties. There were no such cases during the year, because continuing problems between the government and magistrates prevented any sanctions for being considered or carried out. During the year a new five-judge judicial oversight commission, similar in function to the superior council, began conducting investigations of judicial decisions and addressing suspected miscarriages of justice. However, in contrast to the superior council, the president appointed members of the commission, which increased executive control over the judiciary and decreased the authority of the superior council. Parties to judicial cases could appeal to the commission.

Trial Procedures

Applicable law was sometimes confusing, as courts often tended to blend the formal French-derived legal code with traditional practices, and customary law often continued in practice to overrule Napoleonic law. Residents of rural areas often lacked access to formal judicial institutions, and legal reference texts were not available outside the capital. In most civil cases, the population relied on traditional courts presided over by village chiefs, canton chiefs, or sultans. However, decisions could be appealed to a formal court.

Defendants are presumed innocent until proven guilty, but in practice many judges assumed a suspect's guilt, particularly in crimes involving rape or theft. Cases are heard as public trials, and defendants have the right to appeal any decision. Defendants, their lawyers, and judges are permitted by law to question witnesses.

The law states that indigents should be provided promptly with legal counsel; in practice, this seldom occurred. Human rights groups sought to improve this situation, and sometimes provided free counsel themselves.

The Muslim concept of *dia*, which involves a payment, based on the decision of local leaders, to the family of a murder victim or other victim of a crime, was practiced widely in northern Muslim areas. Non-Muslim groups, who supported implementation of a civil code, challenged the use of the *dia* system, arguing that it was incompatible with the constitution. Such groups further accused the government of supporting *dia* practices by permitting the existence of local tribunals. No resolution was reached by year's end.

Political Prisoners

Human rights organizations reported beginning in September that there were political prisoners during the year. Military and military family defections and increased rebel activity occurred from September to December, and the government rounded up suspects and kept them in prison during their investigations. The whereabouts of some individuals arrested on suspicion of subversive activities were unknown at year's end. There were several military and immigration prisons, but human rights or other organizations were denied access.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

While the law prohibits such actions, authorities used illegal searches and wiretaps and monitored the contents of private mail. The law also allows authorities to conduct searches of homes only during daylight hours and with a warrant, but security forces ignored these provisions and conducted unlawful searches at any time they wished. Security forces also regularly stopped citizens and extorted money or confiscated belongings.

The government engaged in wiretapping without judicial authorization, monitored private mail through the postal service, and monitored private e-mail through the main post office server.

In October, November, and December, the government ordered the two cellular networks to shut down for short periods for "national security reasons."

The military and police officials conducted searches and confiscations of Thuraya satellite telephones, including those of NGOs, international organizations, and diplomatic vehicles.

There were occasions when police officers arrested family members of suspects. In June gendarmes put a woman and her one-year-old baby in prison when they could not locate her husband whom they sought to arrest. That same month gendarmes in Krim-Krim arrested and detained Medji Allah because of a debt owed by his 21-year-old son.

There were no new developments in the reported 2004 or 2003 cases of government agents who arbitrarily interfered with privacy, families, or homes.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

Although the law provides for freedom of speech and of the press, the government limited these freedoms in practice and intimidated journalists and publishers. The government did not restrict academic freedom.

Individuals who publicly criticized the government often faced official reprisal. There were reports that the government attempted to control criticism by monitoring meetings of the political opposition, and there were reports that the government attempted to intimidate its critics.

The government owned the newspaper *Info Tchad* and influenced another, *Le Progres*, but it did not dominate the press. A number of private newspapers, many of which were critical of government policies and leaders, were published and circulated freely in the capital.

Due to widespread illiteracy and the relatively high cost of newspapers and television, radio remained the most important medium of mass communication. The government-owned Radiodiffusion Nationale Tchadienne had branches in N'Djamena, Abeche, Moundou, Sahr, and Taya. There were numerous private radio stations, including several owned by religious organizations (there were 86 Christian stations and 2 Muslim ones) that broadcast throughout the country.

The licensing fee set by the High Council for Communications (HCC) for a commercial radio station remained prohibitively high at approximately \$10 thousand (FCFA 4,972,000) per year, 10 times the fee for radio stations owned by nonprofit NGOs. Both stations run by nonprofit groups and commercial ones were subject to close official scrutiny.

The government owned and operated Teletchad, the only domestic television station, but did not interfere with private channels.

The government harassed and detained journalists during the year. Five journalists were imprisoned on the grounds that their reports allegedly jeopardized national security. Libel law was used to suppress criticism of political leaders, and during the year the government arrested several journalists for defamation. A July appeals court decision that the government had improperly brought defamation charges was ignored. The journalists were rearrested and sentenced to prison. On May 27, authorities charged the editor of the independent newspaper *Le Temps*, Michael Didama, with manipulating information from the eastern region to impugn the reputation of the government for having published a photograph, taken from a reportedly antigovernment Web site, allegedly of a massacre at Ouadi Hamra.

On June 4, ANS personnel detained the editor of *l'Observateur*, Samory Ngarandoumbe, for publishing an open letter from the Kreida ethnic group in which they complained about poor treatment by the Zaghawa. Samory was turned over to the judicial police (a branch of the National Police which investigates and prepares charges for the courts), which first released him on June 6, then subsequently rearrested and tried him on July 11. He received a sentence of 3 months in prison and was ordered to pay a \$200 fine (FCFA 100 thousand). On September 9, Samory, whose case was on appeal, was released until his trial session on September 22, when he was acquitted.

On July 11, authorities sentenced freelance journalist Garonde Djarma to 3 years in prison and fined him \$5 thousand (FCFA 2.5 million). He was charged with defamation and inciting racial hatred for providing an interview to *l'Observateur* editor Sy Koumbo Singa Gali. On July 20, authorities arrested Gali and charged her with inciting ethnic hatred for having published the interview with Djarma in which he claimed that his arrest was "*janjaweed* (Arab militia) trickery". On August 15, Gali was found guilty and sentenced to a year in prison and ordered to pay a fine of \$200 (FCFA 100 thousand).

On September 6, Laissou Bagmla, a reporter for *l'Observateur*, was arrested for defamation and held for two days before being released.

On September 26, an appeals court freed Gali, Samory, and Didama after finding that they had been incorrectly charged. Didama could still face charges of "inciting ethnic hatred." Djarma was freed earlier in September.

Some journalists in the rural provinces reported that government officials warned them not to engage in any contentious political reporting. In addition some domestic journalists claimed that the government restricted their ability to cover some events or visit certain locations and limited their access to high-ranking officials, restrictions that the government did not impose on foreign journalists.

The government placed limits on radio broadcasting. On May 4, the HCC issued an order prohibiting private radio stations from broadcasting political debate concerning the referendum. The HCC stated that it would use a list to determine the order for the public service broadcasting of their messages. In effect, each of the 74 political parties would only get one broadcast due to the high number of parties in the rotation. It was a way to limit and dilute the messages of the opposition parties. The parties' messages needed to be registered well in advance of their broadcast in the presence of a member of the HCC. Any message carried in a language other than French or Arabic was required to be reviewed 48 hours in advance.

The independent media protested this measure in court, and on May 25, the Supreme Court suspended the HCC's prohibition. On May 27, HCC Chairman Moussa Dago announced that the court decision did not affect the HCC regulation which states that radio stations operated by community and private associations cannot broadcast political messages. Most opposition parties praised the Supreme Court's decision but noted that it came too late to make a difference in the referendum outcome and that the government had effectively silenced independent radio for most of the campaign period.

On May 19, the HCC closed Radio Brakoss, a community radio station in Moissala in the South, for a third time. It closed the station for airing an in-depth discussion with the board of governors of Radio Brakoss which addressed the activities of *coupeurs de route* (armed robbers), the illegal release of criminals from prison by the gendarmes, and the mistreatment of local citizens by herders and gendarmes, for fear that the broadcast would inflame listeners against the government. Station owner Tchanguiz Vatankah said that local officials threatened his life in the presence of the then interim minister of communications. The HCC ordered that the radio station be reopened in September; the government complied. On September 25, authorities arrested Vatankah but turned him over to the UNHCR and the ICRC on November 29 for relocation outside the country.

In June the governor of Doba warned the local radio station La Voix du Paysan to cease discussing the results of the referendum. Security forces also beat Eliakim Vanambyl, a journalist with the radio station, because he reported the low voter turnout for the referendum.

In July the HCC warned FM Liberte not to broadcast criticism of a speech given by the French ambassador that was critical of the independent media. The HCC later reversed its position and apologized to FM Liberte.

Media owned and controlled by the government were headed by government-selected news directors and subject to government pressure that resulted in informal censorship; however, at times they were critical of the government.

The government used the press code to limit the amount of public broadcasting time allotted to political parties that opposed the public referendum; the Supreme Court ruled this action was illegal.

The government did not restrict access to the Internet but monitored e-mail through the main post office server.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

Although the law provides for freedom of assembly, the government limited this right in practice. Authorities banned demonstrations they expected would be critical of the government, despite being notified five days in advance as required by law; however, they permitted demonstrations they presumed would support the government and its policies.

Throughout the year the police regularly disrupted student gatherings.

Unlike in previous years, there were no reports of security forces using excessive force against demonstrators.

There were no developments in the 2004 or 2003 cases of abuse resulting from the use of excessive force by security forces against demonstrators.

Freedom of Association

The law provides for freedom of association, and the government generally respected this right in practice.

c. Freedom of Religion

While the law provides for religious freedom, at times the government limited this right. The law also provides for a secular state. Senior government officials were predominantly Muslim, and some policies in practice favored Islam. For example, the government sponsored annual hajj trips to Mecca for certain government officials.

The Islamic religious group Faid al-Djaria remained banned at year's end on the grounds that its religious customs, including the singing and dancing together by men and women in religious ceremonies, were allegedly un-Islamic.

Although the different religious communities generally coexisted without problems, there were reports of tensions within the Muslim community between the High Council for Islamic Affairs (a government-sanctioned, nongovernmental body) and radical elements within the community. There also was occasional tension between Christians and Muslims. However, during the year there were regular meetings between key religious leaders to discuss peaceful collaboration among groups.

Societal Abuses and Discrimination

There was no known Jewish community. There were no reports of anti-Semitic acts.

For a more detailed discussion, see the 2005 *International Religious Freedom Report* ([//2009-2017.state.gov/j/drl/rls/irf/2005/](https://2009-2017.state.gov/j/drl/rls/irf/2005/)).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

Although the law provides for these rights, the government in practice imposed some limits. The Ministry of Territorial Administration required an "authorization for circulation" for foreign travelers, including humanitarian agency personnel, intending to visit the eastern part of the country, due to growing insecurity in the region. The travel permits were not restrictive but required travelers to allow between three and five days to obtain them. Authorities also required foreigners to register upon arrival with immigration authorities in Abeche.

Elements of the security forces, rebels, and bandits continued to maintain roadblocks throughout the country, extorting money from travelers and often beating and in some cases killing them. However, the number of roadblocks decreased significantly after the minister of territorial administration banned them.

There was no further investigation or action taken in the 2004 harassment of the national assembly president or in the 2003 assault by security forces on an expatriate businessman.

Tension along the border with the CAR continued to hinder free movement in the region. During the year bandits from the CAR continued to enter the country and attack citizens, despite an agreement by government officials of both countries to stem insecurity along the border and seize weapons held illegally by militias, herders, and other individuals.

The law prohibits forced exile, and the government did not use it.

Protection of Refugees

The law does not provide for the granting of asylum or refugee status and consequently is not in compliance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, but the government has established a system for providing protection to refugees. In practice the government provided protection against *refoulement*, the return of persons to a country where they feared persecution, and granted refugee status or asylum. The government also provided protection to certain individuals who may not qualify as refugees under the convention or its protocol. An official national structure, the National Committee for Welcoming and Reinsertion of Refugees, handled returning citizens who had been refugees in other countries and foreign refugee matters.

The government cooperated with the office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees and asylum seekers. The UNHCR and the government worked together to identify safer sites for refugee camps a safe distance from the Sudanese border and the conflict in the Darfur region of western Sudan. According to the UNHCR, the country hosted approximately 220 thousand Sudanese refugees from Darfur, 200 thousand of whom were located in 12 camps along the eastern border with Sudan. There were also an estimated 40 thousand refugees from the CAR and small numbers from the Democratic Republic of the Congo.

In May five refugee camps were closed to humanitarian workers after attacks on aid workers resulted in the deaths of several refugees and gendarmes and injuries to refugees and humanitarian workers.

There were no additional developments concerning reports in 2003 that soldiers in the southern border town of Gore harassed, beat, and stole from refugees fleeing the CAR.

Antirefugee sentiment among citizens living in refugee-affected areas was high due to competition for local resources--wood, water, and grazing land--and the provision of goods and services to Sudanese refugees that were not also made available to the local population. There continued to be reports that citizens attacked refugees and destroyed their wells out of frustration and fear of resource shortages. The UNHCR, in collaboration with local government authorities, created committees consisting of refugees and local residents to discuss resource and other contentious issues with the aim of mitigating tensions. They were successful in diminishing the level of tensions and bringing resolution to some issues between the two groups.

The UNHCR and its partner organizations expressed concern about the possibility of the militarization by Sudanese and Chadian rebels of the refugee camps, particularly one located much closer to the border than the others. During the year the UNHCR invited a committee of experts on refugee security to visit the camps. The experts determined that the camps were not militarized and found no evidence of attacks being launched from them. Proximity to the border for two camps remained a problem, but following the UNHCR visit in August, the government agreed to move Oure Cassoni and Am Nabak camps to safer locations. During the year the number of gendarmes deployed outside the refugee camps to protect the refugees from outside threats was increased.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Although the law provides citizens with the right to change their government, the government continued to limit this right in practice. The executive branch dominated the other branches of government.

Elections and Political Participation

On June 6, the government held a public referendum on constitutional amendments, approval of which abolished presidential term limits, abolished the nonexistent senate, and created a Social and Economic Council with members to be appointed by the president. On July 7, the Constitutional Council, after reviewing the results, nullified voting in 3,007 of the 10 thousand electoral districts. It cited a number of irregularities, including nonrespect for prescribed voting hours, discrepancies between the number of registered voters and votes cast, discrepancies between votes cast and counted, the lack of final tally sheets

in some areas, lack of required signatures, and multiple voting by nomadic herders. The council also cancelled the votes cast abroad because the voter register was not published at least 30 days before the election. In July the council announced a participation rate of 57.8 percent with 65 percent of votes cast in favor of the constitutional changes.

Communal elections were not held in late 2005 as originally planned.

The outcome of the 2002 legislative election, in which President Deby's MPS party won a majority of national assembly seats, was largely determined in advance through ruling party manipulation, and voting was impacted by inaccurate voter lists, due primarily to a faulty electoral census that the government refused to revise. Local NGOs reported numerous voting irregularities.

According to several observers, President Deby's first-round victory in the 2001 presidential election was marred by irregularities. While monitoring the voting process, unofficial observers from local human rights and civil society groups were assaulted in polling stations. In addition, prior to and following the presidential election, several incidents of abuses against opposition supporters and candidates took place, and the government restricted media coverage.

There were an estimated 70 political parties in the country. Parties allied with the regime generally received favorable treatment. Opposition political leaders have accused the government of co-opting their most popular local politicians to run as MPS members in local elections and also alleged intimidation by the military of those party members who refused to cooperate. Northerners, particularly members of the Zaghawa ethnic group, including the Bideyat subclan to which the president belongs, continued to dominate the public sector and were overrepresented in important posts in key institutions of state power, including the military officer corps, elite military units, and the presidential staff.

There were 6 women among 32 ministers in the cabinet. There were 10 women in the 125-seat National Assembly, and 2 members of the 25-member CENI were women.

Government Corruption and Transparency

Corruption continued to be a serious problem. The presidency continued to fight the problem of "phantom soldiers" whereby some officers in the security forces continued to collect government payments for several thousand nonexistent subordinates. Between April 15 and 20, the military conducted an internal review. Some participants identified corruption among some officers as a problem. The exercise identified tribalism, inadequate pay, and a disproportionately high officer-to-soldier ratio as sources of the problem.

The Ministry for Moralization and State Control, created in July 2004, began a public awareness campaign by running radio spots highlighting the dangers of corruption. The minister met with religious leaders and school directors to discuss and heighten awareness of the importance of strong moral values in the fight against corruption. The ministry was developing ethics regulations and an enforcement process with each ministry. The ministry surveyed citizens about corrupt practices and corrupt officials to better focus its efforts against corruption.

In August there were reports that the government began seizing vehicles and other government property from ex-ministers and ruling party members. Allegations over misappropriation of government funds were cited as reasons behind the August 7 cabinet reshuffle.

In September the former head of CENI was arrested and was being prosecuted for signing false paperwork to authorize the import of vehicles.

In July the *college du surveillance et controle des revenus petrolieres* (College for the Monitoring and Control of Oil Resources, or CCRSP) issued its first report on accounting for social and economic improvement projects funded with oil revenues. It identified many deficiencies in the execution of projects, including contract delays, nondelivery of goods, poor

quality of projects, lack of communication between priority sector ministries and local authorities, and corrupt practices, such as double-charging for services. The priority sector ministries are responsible for correcting the faults. By year's end, the government had not taken action on the report.

The World Bank and CCRSP members expressed concern over the government's circumvention of normal contracting procedures funded by oil revenues. Legally, the prime minister can request an exemption from procedures in cases of extreme urgency or where there is only a sole-source provider for a service. However, after several such requests to circumvent the competitive contracting procedures, the CCRSP wrote a letter of protest to the prime minister asking that he withdraw his requests. In December the government amended the oil revenue management law to increase the percentage of oil revenues going directly into the national treasury from 15 to 30 percent; added security, territorial administration, and justice as priority sectors; and abolished the Fund for Future Generations. The revision also placed oil revenues from three newly developed fields under supervision of the CCRSP and extended the mandate of the members.

In July the government approved a plan to modernize and streamline its budgetary process to improve efficiency and transparency. The plan creates ethics committees within the Ministry of Moralization to monitor the budgetary process and organize public meetings among officials on the negative effects of corruption.

The law does not provide for public access to government information; in practice the government provided access to government-employed journalists, but independent media journalists complained during the year that they did not have sufficient access to government information. The government's low capacity to retrieve and store information was a problem; however, the government mandates that the proceedings of some ministerial meetings be broadcast over the radio or published in *Info Tchad*, a government newspaper.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The government obstructed the work of domestic human rights organizations during the year through arrest, detention, and intimidation; however, such groups were able to investigate and publish some findings on human rights cases. Government officials generally were accessible to human rights advocates but unresponsive or hostile to their findings.

There were two principal local human rights organizations: the Chadian Association for the Promotion of Human Rights (ATPDH), and the LTDH. These and smaller human rights organizations worked closely together through an umbrella organization, the Association for Human Rights, and their activities included observing government detention practices, assisting individuals who have suffered human rights abuses, and holding public conferences and seminars. These sessions addressed press freedom and arrests of journalists, relocation of residents of local neighborhoods, transparency of oil revenues, disappearances of individuals, and the socio-political situation and its impact on human rights.

Despite pressure from the government, human rights groups were outspoken and often partisan in publicizing abuses through reports, press releases, and the print media, but only occasionally were they able to intervene successfully with authorities. There was a perception that most local human rights groups were composed mainly of political opponents of the government, which weakened their credibility with the government and some international organizations.

In April GNNT members attacked and destroyed a shop owned by Daoud Saboune. He said that the minister of public security had threatened him for reporting the case to the LTDH.

In July authorities jailed Daniel Passalet, president of Human Rights Without Borders, after he expressed his opposition in court to a verdict regarding the journalists arrested in July. He was released after 24 hours.

During the year the government did not totally restrict international human rights organizations, such as Amnesty International, and permitted more investigative activity. However, the government, particularly at the local level, placed obstacles in the way of efforts by NGOS and made it more difficult for them to do their work.

Personnel from international human rights organizations traveled regularly through the country to investigate atrocities in Sudan. The government allowed access to the eastern region for employees of the International Criminal Court who were investigating charges of war crimes and crimes against humanity in Sudan.

Belgian courts continued their investigation of crimes against humanity committed by former Chadian president Hissein Habre during his rule from 1982 to 1990. In September a Belgian court announced an indictment of Habre, and the government of Senegal announced that it would extradite Habre to Belgium, but extradition had not taken place by year's end.

In July and August the government responded to a letter from HRW in which it complained of the presence of former members of Habre's security services in current government positions. The president issued a decree to remove all such former agents from the government. Approximately 60 officials were removed by year's end.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

While the law prohibits discrimination based on origin, race, religion, political opinion, or social status, the government did not effectively enforce these provisions. Cultural traditions kept women subordinate to men. The government favored its ethnic supporters and allies. Societal discrimination continued to be practiced against homosexuals, those afflicted with HIV/AIDS, and members of nonfavored ethnic groups.

Women

Although the law prohibits violence against women, domestic violence against women, including spousal abuse, was common. Wives traditionally were subject to the authority of their husbands, and they had limited legal recourse against abuse. Although family or traditional authorities could provide assistance in such cases, police rarely intervened.

The law prohibits rape, prostitution, and spousal abuse, but all were problems.

There were reports that family members killed women for breaking social taboos. For example, a girl cannot visit the site of initiation before the ceremony takes place. If she does, the village leaders can kill her.

The law prohibits violence against women, including the practice of female genital mutilation (FGM); however, FGM was widespread and deeply rooted in tradition. According to a 2004 government report by the National Institute of Statistics, Economic and Demographic Studies, 45 percent of local women had undergone excision. The rates of FGM by ethnic groups included: Arabs (95 percent), Hadjarai (93 percent), and Oaiddai (90 percent). Lower percentages were reported among the Sara (38 percent) and Gorane (2 percent). According to the survey, 70 percent of Muslim females and 30 percent of Christian females were subjected to FGM. The practice was prevalent especially among ethnic groups in the East and South. All three types of FGM were practiced. The least common but most dangerous and severe form of FGM, infibulation, was confined largely to the region on the eastern border with Sudan. FGM usually was performed prior to puberty as a rite of passage.

Under the law, FGM can be prosecuted as a form of assault, and charges can be brought against the parents of FGM victims, medical practitioners, or others involved in the action; however, few suits were brought during the year. The Ministry of Social Action and the Family was responsible for coordinating activities to combat FGM. On April 12, a young girl died from infibulation in Ndilambaye. Gendarmes arrested the perpetrators, who were fined two thousand dollars (FCFA one million).

Although the law prohibits prostitution, pimping, and owning a brothel, prostitution was a problem, particularly in the southern oil-producing region. The law provides for prison terms of 2 months to 2 years and a fine of \$100 (FCFA 50 thousand) to \$1 thousand (FCFA 500 thousand) for violations.

The law does not prohibit sexual harassment.

Discrimination against women remained widespread. In practice women did not have equal opportunities for education and training, making it difficult for them to compete for the relatively few formal sector jobs. Although property and inheritance laws based on the French code do not discriminate against women, local leaders adjudicated most inheritance cases in favor of men, according to traditional practice.

The exploitation of women was pervasive, especially in rural areas, where women did most of the agricultural labor and were discouraged from seeking formal schooling. Illiteracy was estimated at 66 percent for women, compared to 48 percent for men.

While no law addresses polygyny, spouses may opt at any time to declare a marriage monogamous. If a husband takes a second wife, the first wife has the right to request that the marriage be dissolved; however, she must repay the bride price and other expenses related to marriage. Polygyny became a controversial issue between Muslim and Christian communities during debate over revision of the family code, which remained pending. Issues involved in code revision were contentious; as a result, the Council of Ministers created a committee to propose compromises on controversial issues, such as polygyny and inheritance.

Children

The government generally supported the activities of NGOs and international donors to improve children's rights and welfare, but the government had few resources to organize its own activities. Although the government continued to increase modestly its assistance to the education sector, it was unable to fund adequately public education and medical care. Government education policy for children and youth focused on increasing classroom facilities and infrastructure.

Although by law education is universal, compulsory, and free from ages 5 through 12, parents complained that they must pay tuition to public schools. Approximately half of teachers were hired and paid by parent-teacher associations, without government reimbursement. The UN Children's Fund (UNICEF) reported early in the year that 46 percent of boys and 33 percent of girls attended primary school. Educational opportunities for girls were limited, mainly because of the traditional role of young girls in household tasks such as obtaining water and wood. The percentage of girls enrolled in secondary school was extremely low compared with that of boys, primarily because of early marriage.

Child abuse, including abuse of child herders, remained a problem.

FGM was commonly practiced on young girls (see section 5, Women).

Although the law prohibits sexual relations with a girl under the age of 14, even if married, the ban was rarely enforced. Families arranged marriages for girls as young as 12 or 13; the minimum legal age for engagements was 11. The law prohibits forced marriages of minors (defined as anyone under 18) and provides for penalties of 6 months to 2 years imprisonment and a fine of between 100 and 1 thousand dollars (FCFA 50 thousand to 500 thousand). There were some forced marriages, and the custom of buying and selling child brides continued to be a problem. Many young wives were forced to work long hours of physical labor for their husbands in fields or homes.

Several human rights organizations reported on the problem of the *mahadjir* children who attended certain Islamic schools and were forced by their teachers to beg for food and money. There was no reliable estimate of the number of *mahadjir* children. During the year the High Islamic Council held a public meeting with imams from around the country to discuss the

treatment of children under Islam.

Trafficking in children was a problem (see section 5, Trafficking).

The law prohibits use of child soldiers, and UNICEF protection officers reported that the practice was not widespread. Although reliable information was difficult to obtain, UNICEF estimated in 2003 that there were approximately 600 child soldiers serving in government security forces and armed groups in the country; however, that number was believed to have decreased during the year and no further confirmed recruitment of children for use as soldiers was reported. However, in late December, unconfirmed reports of forced recruitment of male youths circulated after the government began enforcing a curfew during the holidays, in particular of forced recruitment in N'Djamena and Abeche.

Child labor remained a serious problem (see section 6.d.).

In 2002 UNICEF estimated that there were approximately 10 thousand street children, and in 2003 the newspaper *Le Temps* reported that the number was increasing. Children were on the streets because either one or both parents had died or because parents did not take care of them.

Trafficking in Persons

Although the law prohibits trafficking in persons, persons were trafficked within the country. Children were trafficked for forced labor, primarily as herders or domestic workers (see section 6.d.). A 2004 NGO survey of 500 child herders who had been returned to their parents indicated that there may have been between 1,500 and 2 thousand children between 6 and 17 years of age who had been trafficked as child herders. Local authorities, religious groups, and NGOs rescued 256 children in 2004-05. There were also reports of child prostitution, primarily in the southern oil-producing region.

The law provides penalties of between 10 months' imprisonment and life-long prison sentences involving hard labor for trafficking violations and between 10 and 20 years of forced labor in prison for the trafficking of children. No economic or financial aid for victims was available unless a court awarded damages. The Ministry of Justice's child protection department continued to cooperate with UNICEF and a few NGOs to combat trafficking.

The government arrested traffickers during the year. In May a citizen was arrested in Kousseri, Cameroon for forcing a child that he had kidnapped from Koumra, Chad to beg in the streets. Cameroon extradited the man to Chad, where he was in jail awaiting trial on kidnapping charges. In August a tip from a taxi driver led police to four children who were being trafficked to Cameroon from the country. The children were discovered in sacks in the back of a transport vehicle. The businessman was arrested and was in jail awaiting trial. The children were returned to their parents. There were no developments in the 2004 case of the appeal by three accused traffickers who were sentenced to hard labor for life by an appeals court, or in the case of a 10-year-old sold in 2004 by her parents to herders.

During the year the government held a seminar with members of the national assembly to raise awareness of the trafficking law, and UNICEF sponsored educational campaigns through the media to advise parents to instruct children about the danger of trusting strangers. The government, working with UNICEF and NGOs, identified cases of trafficking. During the year the Ministry of Justice received funding for its antitrafficking efforts, but it did not have the financial resources to support NGOs. During the year antitrafficking efforts included continued revision of the legal code; training for police, customs, other government officials; and sensitizing civil society to the problem. Victim support was provided at the local level, often through the intervention of local government authorities who transferred victims to the care of religious groups.

The government focused most of its antitrafficking efforts on prevention, particularly by raising citizens' awareness of trafficking. For example, during the year the governor of Moyen Chari, an area that was the source for the majority of children used as cattle herders, continued to increase prosecutions of those complicit in trafficking. He also worked through the

region's prefects and sub-prefects to recover children who had been trafficked. Also, the Ministry of Social Action and Family, the Ministry of Labor, and UNICEF conducted meetings with village elders in Moyen Chari to sensitize them to the problem.

Persons with Disabilities

The law prohibited discrimination against such persons; however, in practice the government operated few therapy, education, or employment programs for such persons, and no laws mandate that buildings be accessible to them. Several local NGOs provided skills training to persons with hearing or visual impairment. During the year the government, in conjunction with NGOs, continued to sponsor an annual day of activities to raise awareness of persons with disabilities. The Ministry of Social Action and Family is responsible for the rights of the disabled.

National/Racial/Ethnic Minorities

There are approximately 200 ethnic groups, many of which are concentrated regionally and speak 128 distinct primary languages. Although most ethnic groups were affiliated with one of two regional and cultural traditions--Arab and Saharan/Sahelian-zone Muslims in the North, Center, and East; and Sudanian-zone Christian or animist groups in the South--internal migrations in response to urbanization and desertification resulted in the integration of these groups in some areas.

Societal discrimination continued to be practiced routinely by members of virtually all ethnic groups and was evident in patterns of employment, especially across the North-South divide. The law prohibits government discrimination on the basis of ethnicity, although in practice it continued to influence government appointments and political alliances (see section 3). Political parties and groups generally had readily identifiable regional or ethnic bases.

The rebellion by ethnic Toubous of the MDJT in the northwestern Tibesti region lost much of its strength during the past two years, and at year's end the government and the MDJT continued efforts to negotiate an end to the conflict. Sporadic clashes between factions of the MDJT and government forces occurred in September and November. Clashes between herders and sedentary populations and other interethnic violence, often concerning land use, continued to be a serious problem.

In May members of the Zaghawa ethnic group attacked villagers, mainly belonging to the Ouaddai ethnic group, in Ouadi Harmra. The attackers claimed that members of the village did not pay *día* after the death in April of a family member. Approximately 21 persons were killed and dozens injured.

There were no further developments in the 2004 ethnic clashes or clashes between farmers and herders.

Section 6 Worker Rights

a. The Right of Association

The law allows all employees except members of the armed forces to join or form unions, but only with the authorization of the Ministry of the Interior; the government generally respected this right in practice.

In the formal sector, more than 90 percent of employees belonged to unions; however, the great majority of workers were nonunionized, unpaid subsistence cultivators or herders. The government, which owned businesses that dominated many sectors of the formal economy, remained the largest employer.

An ordinance that requires prior authorization from the Ministry of the Interior before an association, including a labor union, can be formed remained in force; however, there were no reports that the ordinance was used. The ordinance also allows for the immediate administrative dissolution of an association and permitted the authorities to monitor associations' funds.

b. The Right to Organize and Bargain Collectively

The law allows unions to organize and bargain collectively, and in practice the government protected these rights. There were no export processing zones.

Although there were no restrictions on collective bargaining, the law authorizes the government to intervene in the bargaining process under certain circumstances.

The law recognizes the right to strike, and workers exercised this right in practice. The right to strike is limited in the public sector by a decree requiring minimum service to be maintained. While the law permits imprisonment with forced labor as punishment for participation in illegal strikes, no such punishment was imposed.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, including by children; however, during the year there continued to be reports of forced labor practices in the formal economy and isolated instances of local authorities demanding forced labor by both children and adults in the rural sector (see section 6.d.). There were also reports that prisoners were required to work to pay back taxes they allegedly owed.

The law permits imprisonment with forced labor only for participation in illegal strikes.

d. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits children (anyone under the age of 18) from undertaking "any work which, by its nature or the circumstances in which it was carried out, was likely to harm the health, safety, or morals of children"; however, in practice child labor, including forced child labor, was a serious problem. The government generally lacked the means to ensure enforcement of the law.

Although the labor code stipulates that the minimum age for employment in the formal sector is 14, the government did not enforce the law. According to a 2000 UNICEF study, 65.5 percent of minors worked, including those performing domestic chores for more than 4 hours per day, those working within the family (herding, microcommerce, etc.), and those who were underage and working for someone outside the family.

Approximately 1 out of every 5 children between the ages of 6 and 18 worked in the urban informal sector. Children throughout the country worked in agriculture and herding. They were also employed in the commercial sector, particularly in the capital, as street vendors, manual laborers, and helpers in small shops. Young girls worked as domestic servants, mainly in N'Djamena.

By some estimates, abusive and exploitative child labor affected 20 percent of children between the ages of 6 and 18. A UNICEF-government survey of child domestics in N'Djamena completed in February noted that 62 percent of child laborers were boys; young girls migrated to N'Djamena to earn money; 24 percent of working children were between 8 and 14 years of age, and 68 percent were between 15 and 17; and 86 percent of the children surveyed could not read or write.

There were cases in some southern regions in which families sold their children. In some areas local authorities fined parents caught selling their children into forced labor. To avoid detection, some families worked with intermediaries to pass children from families to the farm owners.

During the year there were reports that in the southern part of the country families contracted out their children to Arab nomadic herders to help care for their animals, and the children often were abused and returned with little financial compensation for their work.

There were also credible reports that children were forced into slavery. According to a 2004 UN news service report, aid workers in the country estimated that families have sold as many as two thousand children--some as young as eight--into a system of slavery in which they worked as child cattle herders.

Some children worked as domestic servants in the households of relatives for little compensation. Some young girls were forced into marriages by their families and then compelled to work in their husbands' fields or homes and to bear children while they were still too young to do so safely (see section 5).

The law prohibits the use of child soldiers, and according to UNICEF protection officers, the use of child soldiers was not widespread (see section 5).

There were only 30 labor inspectors for the entire country. Approximately 10 to 15 child labor cases reportedly were investigated by the government each year.

The government worked with UNICEF to increase public awareness of child labor. During the year UNICEF organized workshops in regional towns to share information on the dangers of forced child labor and the benefits of education. The training provided each town with one individual charged with overseeing the continuing sensitization campaign. UNICEF developed a program with government funding to reduce the prevalence of young girls serving as household domestics. In addition the campaign to educate parents and civil society on the dangers of child labor, particularly for child herders, continued.

e. Acceptable Conditions of Work

The labor code requires the government to set minimum wages. The minimum wage at year's end was \$51 (25,480 FCFA) per month. Most wages, including the minimum wage, did not provide a decent standard of living for a worker and family. Nearly all private sector and state-owned firms paid at least the minimum wage, but it was largely ignored in the vast informal sector. During the year, for the first time the government began to pay all its employees at least the minimum wage, and government salaries increased overall by 5 percent. However, in some areas there were long delays in the payment of those salaries. Salary arrears remained a problem, although less so than in previous years. Low wages among customs, police, and military officials contributed to almost daily extortion of the civilian population along all major roads (see section 2.d.).

The law limits most employment to 39 hours per week, with overtime paid for supplementary hours. Agricultural work was limited to 2,400 hours per year, an average of 46 hours per week. All workers were entitled to an unbroken 48-hour rest period per week; however, in practice these rights rarely were enforced.

The labor code mandates occupational health and safety standards and gives inspectors the authority to enforce them; however, in practice these standards rarely were respected in the private sector and were nonexistent in the civil service.

Workers had the right to remove themselves from dangerous working conditions; however, in practice they could not leave without jeopardizing their employment.

The labor code explicitly protects all workers, including foreign and illegal workers, but the protections provided were not always respected in practice.

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